

**UNIVERSITY OF PORT HARCOURT**

**FACULTY OF LAW**

**LAW OF EVIDENCE**

**TOPIC:- DOCUMENTARY EVIDENCE**

**Definition**

What is a document, one may ask? **Darling J**, in **R v. Dave** (1908) 2 KB 333 at 340 defined document as **any written thing capable of being given in evidence and it is immaterial on what the writing may be inscribed**. The most comprehensive definition of document will be found in **section 258 of the Evidence Act, 2011** which provides as follows:

Documents include:

- a) Books, maps, plans, drawings, photographs and also includes any matter expressed or described upon any substance by means of letters, figures or marks or by more than one of these means intended to be used or which may be used for the purposes of recording that matter.
- b) Any disc, tape, sound track or other device in which sounds or other data (not being visual images) are embodied so as to be capable with or without the aid of some other equipment) of being reproduced from it.
- c) Any film, negative, tape or other device in which one or more visual images are embodied so as to be capable (with or without the aid of some other equipment) of being reproduced from it; and
- d) Any device by means of which information is recorded, stored or retrievable including computer output.

What flows from the above is that documentary evidence is any statement made in a document or any other written form which is offered to the court in proof of any fact in issue.

There are basically three legal concepts material to documentary evidence. They are Custody, Relevancy and Admissibility.

**Custody:** This refers to the source from which a document emanates. It seeks, in the main, to find out if the person trying to tender a document is its maker or otherwise has a nexus with the said document. A document is said to come from proper custody where the person seeking to tender it has a reasonable connection with it. On the other hand, a document will be said to come from improper custody where there is no nexus between a document and the person seeking to tender it.

**Relevancy:** As earlier taught, relevancy refers to the logical connection or importance of a document to the fact in issue in a matter. A document that is not relevant to the live issues in controversy in a matter may hardly be considered for admission in such a case.

**Admissibility:** This simply refers to conditions imposed by the law in order for a piece of document to be admitted by the court. Thus, a piece of document may be relevant, and may even emanate from proper custody, but yet, it may still be rejected in evidence if it fails to meet the conditions set down by the Evidence Act for its admissibility.

In seeking to tender a piece of documentary evidence, issues of custody, relevancy and admissibility always spring up.

In addition to the above, Evidence law also draws a distinction between admissibility and weight. Note that admissibility herein has the same meaning set out above, while weight refers to the probative value or importance which a court may attach to a piece of documentary evidence. It must be emphasized that issues of custody of a document do not affect the admissibility of such a document; all that they affect is the weight to be attached to it in the final judgment of the court. In other words, a document produced from improper custody which is relevant and admissible will easily be admitted in evidence, but the fact of its wrong custody will affect the weight the court will ultimately place on it. See **Torti v. Ukpabi** (2000) FWLR (Pt. 29) 2481.

### **Classification**

There are two types of documents under the Evidence Act, namely: Public documents and private documents.

**Public Documents:** By **section 102 of the Evidence Act**, the following documents are public documents:

- (a) Documents forming the official acts or records of official acts of –
  - (i) the sovereign authority;
  - (ii) official bodies and tribunals, or
  - (iii) public officers, legislative, judicial and executive, whether of Nigeria or elsewhere; and
- (b) public records kept in Nigeria of private documents.

It should be noted that the documents envisaged under paragraph (a) above are official records, proceedings and correspondences of government officials, ministries, departments, agencies and establishments at all tiers of government in the country. Thus, in **Adekola v. Ailara** (2011) ALL FWLR (Pt. 572) 1696, the court of Appeal held that a public document is one made by a public officer for the purpose of the public making use of it and being able to make reference to it or inspection thereof.

Documents under paragraph (b) above are private documents whose records are kept government bodies and institutions. Examples of such documents are Deed of conveyance; Deed of lease; Deed of assignment; Deed of mortgage which are required to be registered at the Lands Registry. Memorandum and Articles of association which are used for the registration of companies also fall into this category. Even age declarations are also included here.

The courts have established that for a document to qualify as a public document, the following two conditions must be shown to co-exist, namely:

- a) Its availability must be for public inspection.
- b) It is freely open to public inspection and use.

**Private Documents:** Section 103 of the Evidence Act defines private documents as all documents other than public documents. They can be seen as documents exclusively emanating from private persons or from public persons in their private capacity.

### **Means of proof of contents of documents**

There are two means of proving the content of a document. These are by primary evidence and by secondary evidence.

**Primary Evidence:** This is the document itself being produced before the court. It is usually referred to as the 'best evidence'. The statutory meaning of primary evidence could be seen in section 86 of the Evidence Act. According to the section:-

- (1) Primary evidence means the document itself produced for the inspection of the court.
- (2) Where a document has been executed in several parts, each part shall be primary evidence of the document.
- (3) Where a document has been executed in counterpart, each counterpart being executed by one or some of the parties only, each counterpart shall be primary evidence as against the parties executing it.
- (4) Where a number of documents have all been made by one uniform process, as in the case of printing, lithography, photography, computer or other electronic or mechanical process, each shall be primary evidence of the contents of the rest, but where they are all copies of a common original, they shall not be primary evidence of the contents of the original.

The courts have used the above provisions to hold that where a document is made in duplicates or copies made by same process e.g. typing or writing with carbon papers, each of the copies including the front copy are all primary evidence of the document.

**Secondary Evidence:** These are species of evidence which the law allows to be given in lieu of primary evidence. It includes certified copies; photocopies and even oral account of contents of a document. According to section 87 of the Evidence Act, secondary evidence includes:

- (a) certified copies of a document;
- (b) copies made from the original by mechanical or electronic processes which in themselves ensure the accuracy of the copy, and copies compared with such copies. (An example here are Photostat copies).
- (c) Copies made from or compared with the original;
- (d) Counterparts of documents as against the parties who did not execute them; and
- (e) Oral accounts of the contents of a document given by some person who has himself seen it.

Note that by **section 89 of the Evidence Act**, secondary evidence is only permissible in the following circumstances:

Where the original has been destroyed or lost and all search for it had proved abortive.

Where the original is shown or appears to be in the possession or power of the opponent in the matter and notice to produce had duly been given.

Where the opponent had admitted in writing the existence or contents of the document.

Where the original is of such a nature as not to be easily moveable.

Where the original is a public document.

Where the original is a document for which certification is permitted by law.

Where the original consist of numerous accounts or other documents which cannot conveniently be examined in court.

Where the document is an entry in a banker's book.

Note also that for a party to adduce secondary evidence in respect of any of the permitted instances set out above, proper foundation must first be laid.

We must also emphasize that it is not all types of secondary evidence that can be offered in lieu of primary evidence in respect of all the instances set out in **section 89(1) of the Evidence Act**. The truth of the matter is that **section 90(1) of the Evidence Act** has clearly set out the appropriate secondary evidence that is admissible in respect of each of the instances outlined in **section 89**. They are as follows:

- (1) In respect of nos. 1, 2, and 4 above, any secondary evidence is admissible.
- (2) For no. 3 above, what is admissible is the written admission made by the opponent.
- (3) In respect of nos. 5 and 6 above, what is only admissible is a certified true copy of the document. What then is a certified true copy? Note that by virtue of **section 104 of the Evidence Act**, a certified true-copy is a document that satisfies the following conditions:-

- a) Legal fees for certificate are paid for it.
- b) It is evident on it that it is a certified copy of the original document.
- c) The certification on the document is subscribed with the name, official; title and signature of the public officer who certified it; and
- d) It is sealed or it bears the official stamp of the said public officer.

See **Agawu v. Dawodu** (1990) 7 NWLR (Pt. 160) 565.

Note that it is unnecessary to call the public officer who certified a certified true copy document to tender it as it could be tendered by any body, including the lawyer sitting at the bar. See **Ogunanyiya v. Okudo** (No. 1) (1990) 4 NWLR 551. Note further that the courts have consistently held that a photocopy of a certified true of a document is admissible in evidence. See **Iheonu v. Obiruku** (1998) 1 NWLR (Pt. 523) 204.

(4) In respect of no. 7 above, the permissible secondary evidence is the evidence of an expert who is skilled in the examination of such documents and has duly examined them.

(5) For no. 8 above, the permissible secondary evidence is a copy of the entry in the banker's book, provided it satisfies the following conditions:

- a) The book from which the entry was copied was made as one of the ordinary books of the bank.
- b) The entry was made in the usual and ordinary course of business.
- c) The book is in the control and custody of the bank; and
- d) The copy has been examined with the original entry and found to be correct.

#### **Admissibility of documentary evidence under **Section 83** of the Evidence Act**

This section applies to both civil and criminal proceedings. According to **section 83(1) of the Act**, in a proceeding where direct oral evidence of a fact would be admissible, any statement made by a person in a document which seems to establish that fact shall, on production of the original document, be admissible as evidence of that fact if the following conditions are met:

- (a) The maker of the document must have had personal knowledge of the matters dealt with by the statement.
- (b) The maker of the statement must have been called as a witness in the proceedings.

This provision however contains a proviso which allows the maker of the document not to be called if he is dead or unfit by reason of bodily or mental condition or is outside the country or is not reasonably practicable to secure his attendance in court. This provision has been seen as a codification of the hearsay rule and one of its exceptions.

Subsection (2) clearly contains an exception to the hearsay rule. In the main, it allows the Judge to admit a document even if the maker is not called or the original is not produced, provided that he takes regard to all the circumstances of the case and is satisfied that undue delay or expense would otherwise be caused if he does not admit it.

Subsection (3) of section 83 provides that any document or written statement made by a person interested in a matter at a time when proceedings were already pending or were anticipated which involves a dispute as to any fact which the statement might tend to establish shall be inadmissible. Note that for this provision to apply, two things must be established:

- a) That the person who made the document or statement is a person interested in the matter in dispute. This means that a document made by a non-interested party or a complete stranger will not fall under the provision.
- b) That the document was made when proceedings were already pending or were being anticipated. In other words, this provision will not apply to a document made by an interested party long before the commencement of hostilities over the matter.

Subsection (4) of Section 83 provides that a statement in a document shall not be deemed to have been made by a person in a document unless part thereof was made in his hand or duly signed by him. Note that the signing and dating of a document is of serious importance as the courts have consistently held that an unsigned and undated document is completely worthless and inadmissible. See **A.G. Kwara State v. Chief Alao** (2000) 9 NWLR (Pt. 671) 84 at 104.

**Section 83(5)** makes provision for judicial discretion to reject statement contained in a document notwithstanding that the requirements of the section have all been met, if for any reason it appears to the court to be inexpedient in the interest of justice that the statement should be admitted. Note that this discretion is only exercisable when the Judge is sitting with a jury. No such discretion exists where the Judge is sitting alone.

### **Computer and other Electronically-generated Evidence**

As shown earlier in this lecture, computer and other electronically-generated evidence all qualify as documents within the meaning and purview of the Evidence Act. What is however significant is that the Evidence Act makes a special provision governing their admissibility and this could be found in **section 84 of the Act**. There was no similar provision in the repeal Evidence Act, so this provision is a major milestone in our law of Evidence.

**Section 84(1) of the Evidence Act** makes computer or electronically-generated evidence admissible in court proceedings, but subjects them to the conditions set out in subsection (2). The conditions set out in **section 84(2) of the Act** are as follows:

- (a) That the document sought to be tendered was produced by the computer or device during a period over which it was working regularly to store and process information whether for private, commercial or corporate purposes.

(b) That over the period, there was regularly supplied to the computer in the ordinary course of those activities, information contained in the document sought to be tendered or the source from which it was derived.

(c) That throughout the material part of the period, the computer was operating properly and was not hampered by a major breakdown or malfunctioning which would have affected the production of the document sought to be tendered or the accuracy of its contents.

(d) That the information contained in the document sought to be tendered is derived from information supplied to the computer in the ordinary course of its activities.

The above conditions are intended to ensure the reliability of the contents of the documents sought to be tendered. Note further that by **Section 84(4)** of the Act, compliance with the requirements of subsection (2) could be contained in a certificate issued and signed by a person occupying a responsible position in relation to the operation and management of the computer or device involved.

In **Kubor v. Dickson** (2012) LPELR 9817, the Supreme Court held that compliance with the conditions in **section 84(2) of the Evidence Act 2011** are mandatory and failure to satisfy them renders such computer or electronically-generated evidence inadmissible. See also **Akeredolu v. Mimiko** (2013) LPELP 20532.